

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

1. Identification of the agency and the contracting activity: The requiring activity is the Office of the Comptroller of the Currency's Information and Technology Services (ITS) Office, and the contracting activity is the Office of the Comptroller of the Currency's Acquisition Management Office (AQM).	
2.a Nature and/or description of the action being approved: The purpose of this limited-sources justification is to obtain approval for a contract modification to increase the ceiling and add scope to the Enterprise Mobile Management (EMM) Contract (2031JW24C00004) with Dynamic Digital Transformation, LLC (DDT). The contract, in part, provides Broadband access through various devices offered on a subscription basis, and this modification will add a new type of router device. The subscriptions are priced as a fixed unit price up to a maximum number of units. .	
2.b Name of the vendor: Dynamic Digital Transformation, LLC (DDT)	
2.c Requisition No.: XXXXXXXXXX	
2.d Bridge contract: ☐ Yes ☒ No	2.e Brand name: ☐ Yes ☒ No
3.a A description of the supplies or services required to meet the agency's needs: The routers will be offered to OCC employees or OCC office locations which don't have access to the OCC network. Examples of this are employees assigned to work out of other IRS or other Treasury agency offices for whom Guest Wi-Fi has not yet been set-up or employees assigned to work out of a temporary OCC office location, such as the San Francisco swing space. The routers provide stronger cellular connectivity than our iPhones hotspots or Mi-Fis by extending the range of connectivity.	
3.b Includes IT: ☒ Yes ☐ No	
3.c IGCE/Estimated dollar value: This modification will add funding in the amount of \$44,038.60. The current option period has 7 months remaining; this modification will obligate \$9,944.20 for the current period of performance and \$17,047.20 for each remaining option period (3 and 4).	
4.a Identification of the authority being used: 41 USC 3304(a)(1) as implemented by FAR 6.103-1 Only one responsible source and no other supplies or services will satisfy agency requirements.	
5. Demonstration that the unique qualifications of the proposed contractor or nature of the acquisition requires use of the cited authority: The existing contract includes broadband subscriptions for MiFi, AirCards and Tablets on a pooled 5G data plan. This modification adds another device type to provide broadband connectivity under a subscription model. The broadband subscriptions are in scope but the device type is a new need.	
6. Description of efforts to ensure offers were solicited from as many potential sources as practicable, including whether a notice will be publicized and, if not, which exception applies. The modification will be publicized via the Government Point of Entry (GPE) (SAM.gov) within 14 days of award, as required. The existing contract was publicized and competed under full and open competition after exclusion of sources (small business set-aside) and includes broadband devices.	
7. Determination by the CO that the anticipated cost to the government will be fair and reasonable.	

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The contractor provided pricing from all contracted mobile carriers that provide similar devices and the contract specialist compared those prices to offers on each carrier's website to ensure fair and reasonable pricing.

8. Description of the market research conducted and results, or a statement of the reason market research was not conducted.

Market research was not conducted as the current contractor already provides subscription devices from major cellular carriers.

9. Any other facts supporting use of other than full and open competition. None

10. Listing of any sources that expressed a written interest in the acquisition. None

11. Statement of any actions the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the services/supplies.

When the full contract is recompeted, these devices will be included.

12. Certifications and Approvals:

12.a Program Office Certification (Requiring Activity). I hereby certify that any supporting information and data provided (e.g., the Government's minimum needs or requirements, or other rationale for the limited sources) and which form the basis for this justification for an exception to fair opportunity, are accurate and complete to the best of my knowledge and belief.

Name: _____

Signature/Date: _____

12.b Contracting Officer Certification and Approval. I hereby determine the circumstances of this acquisition support the justification to acquire these supplies or services on a limited source basis. I also certify this limited-sources justification is accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as the authorized contracting officer for this acquisition, I hereby approve the processing of this requirement on a limited-source basis.

Name: _____

Signature/Date: _____

13. Additional Reviews and Approvals (As applicable):

13.a Bureau Chief Information Officer or Authorized Designee (for a proposed contract over \$900,000 but not exceeding \$20 million, by the advocate for competition for the procuring activity designated pursuant to 6.501 or an official described in FAR 6.304(a)(3) or (4). I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief, and representative of the Government's need. Therefore, I hereby consent to the approval of this justification. (Note: The Bureau CIO may delegate their authority for proposed contracts over \$5 million, but not exceeding \$15 million to the Associate Bureau CIO(s).)

Name: N/A _____

Date: _____

Signature: _____

13.b Advocate for Competition (Contracting Activity) (if over \$900,000 but not exceeding \$20 million). I have reviewed this limited-sources justification and find it to be accurate and

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complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as the ordering activity's Advocate for competition, I hereby approve this limited-sources justification.

Name: N/A

Date: _____

Signature: _____

13.c Head of the Procuring Activity or Authorized Designee (if over \$20 million, but not exceeding \$90 million) (Contracting Activity). I have reviewed this limited-sources justification and find it to be accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as the head of the procuring activity or authorized designee, I hereby approve this limited-sources justification.

Name: N/A

Date: _____

Signature: _____

13.d Treasury Chief Information Officer (for IT requirements that are over \$75 million). I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief, and representative of the Government's need. Therefore, I hereby consent to the approval of this justification.

Name: N/A

Date: _____

Signature: _____

13.e Senior Procurement Executive (if over \$90 million) (Contracting Activity). I have reviewed this limited-sources justification and find it to be accurate and complete to the best of my knowledge and belief. Therefore, I hereby approve this limited-sources justification.

Name: N/A

Date: _____

Signature: _____